

CODE OF CRIMINAL PROCEDURE, 1898 (ACT V OF 1898)

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PREAMBLE: An Act / Ordinance to consolidate, amend and enact laws relating to Code of Criminal Procedure, 1898 (Act V of 1898).

Section 154: Information in cognizable cases (FIR)

154: Every information relating to the commission of a cognizable offence if given orally to an officer in charge of a police station, shall be reduced to writing by him or under his direction, and be read over to the informant; and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it, and the substance thereof shall be entered in a book to be kept by such officer (First Information Report).

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Section 496: In what cases bail to be taken (Bailable offences)

496: When any person other than a person accused of a non-bailable offence is arrested or detained without warrant by an officer in charge of a police station, or appears or is brought before a Court, and is prepared at any time while in the custody of such officer or at any stage of the proceedings before such Court to give bail, such person shall be released on bail.

When any person other than a person accused of a non-bailable offence is arrested or detained without warrant by an officer in charge of a police station, or appears or is brought before a Court, and is prepared at any time while in the custody of such officer or at any stage of the proceedings before such Court to give bail, such person shall be released on bail.

Section 497: When bail may be taken in case of non-bailable offence

497: When any person accused of any non-bailable offence is arrested or detained without warrant, he may be released on bail, but he shall not be so released if there appear reasonable grounds for believing that he has been guilty of an offence punishable with death or imprisonment for life or imprisonment for ten years (Prohibitory Clause): Provided that the Court may direct that any person under the age of sixteen years or any woman or any sick or infirm person accused of such an offence be released on bail.

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Section 498: Power to direct admission to bail or reduction of bail (Pre-arrest Bail)

498: The amount of every bond executed under this Chapter shall be fixed with due regard to the circumstances of the case, and shall not be excessive; and the High Court or Court of Session may, in any case, whether there be an appeal on conviction or not, direct that any person be admitted to bail (Bail Before Arrest / Pre-Arrest Bail).

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